CITADEL SECURITIES AUSTRALIA PTY LTD
(the "Employer")
DISPUTE RESOLUTION PROCEDURE
(WITH DEFINITIONS FOR EMPLOYMENT AGREEMENTS)
Dated: 3/22/2022

1. Scope of Agreement. The Employer and I, Sean Gong, agree that, except as set forth below, (a) all disputes and claims of any nature that I may have against the Employer and any member of the Citadel Group (individually or collectively, as the case may be, "Citadel"), or any of their respective officers, directors, partners, members, employees or agents in their capacity as such, including all statutory, contractual and common law claims (including all employment discrimination claims), and any disputes concerning the validity, enforceability or applicability of this Dispute Resolution Procedure (this "Agreement") to any particular dispute or claim, and (b) all disputes and claims of any nature that Citadel may have against me (in each case, other than those claims which are not subject to this Agreement by virtue of statute or order of the Court) (together a "Claim"), will be submitted exclusively first (except as provided below) to mandatory mediation, which mediation shall be conducted in accordance with the Commercial Arbitration Act 2010 (NSW). If the parties are unable to agree on a mediator, we shall jointly request that one be appointed by the President of the Law Society of New South Wales.

If mediation has been unsuccessful following 4 weeks of the inception of the Claim, the Claim shall be referred to mandatory arbitration in Sydney, New South Wales, Australia or another agreed-upon location in accordance with the Commercial Arbitration Act 2010 (NSW) (as amended from time to time). The Claim will be submitted before a panel of three arbitrators. Each party shall be entitled to nominate one arbitrator to sit on the panel, and the nominated arbitrators will seek to agree a chairperson.

Citadel and I agree not to file, institute or maintain any mediation or arbitration other than in accordance with this Agreement. This Agreement and each of the Employment Agreements (defined below) shall inure to the benefit of any successor or assign of Citadel, whether by merger, consolidation, sale of assets or otherwise. References herein to "Citadel" shall be deemed to include any such successor(s) or assign(s). Each member of the Citadel Group and affiliate of the Employer is a third party beneficiary of this Agreement and may enforce the Employer's rights under this Agreement. No change or waiver of this Agreement will be effective unless made in a writing signed by Citadel and me.

2. Exceptions. (a) I agree that Citadel may elect, at its option, to have any dispute or claim resolved in court, rather than arbitration, in accordance with the terms of this Agreement by providing written notice of its election to me within ten (10) days after the mediation conference; (b) this Agreement does not apply to disputes that are expressly excluded from arbitration by statute; (c) either Citadel or I may seek and obtain from a court any injunctive or equitable relief necessary to maintain (and/or to restore) the status quo or to prevent the possibility of irreversible or irreparable harm pending final resolution of mediation, arbitration or court proceedings, as applicable; (d) Citadel may bring an action in court to compel arbitration under this Agreement; and (e) either party may bring an action in court to enforce an arbitration award. Citadel and I expressly waive any right to a trial by jury on all disputes and claims covered by this Agreement.

3. Confidentiality/Parties. I agree that the resolution of any disputes with Citadel likely would involve Confidential Information and that it is necessary to resolve such disputes in a non-public forum and/or with the greatest possible confidentiality if in a public forum. Accordingly, I agree that all information regarding the mediation or arbitration proceedings, including any mediation settlement or arbitration award, will not be disclosed by me, any mediator or arbitrator to any third party without the written consent of Citadel. The election by Citadel to have any dispute or claim resolved in court, rather than in arbitration, shall not in any way be treated as an acknowledgement that any information related to that dispute or claim is not confidential. In any court filings, I shall comply with applicable court rules to protect Confidential Information, including filing documents reflecting Confidential Information under seal. No party shall join, and no arbitrator or court may allow any party to join, claims of any other person in a single arbitration or court proceeding, and there will be no right or authority for any dispute to be brought, heard or arbitrated as a class or collective action without the consent of Citadel. I further agree not to consent to become a member of any class in any proceeding against Citadel. If, without my prior knowledge or consent, I am made a member of a class in any proceeding, I agree to opt out of the class at the first opportunity. Notwithstanding any other clause contained in this Agreement, the preceding three sentences shall not be severable from this Agreement.

4. Time Limits. Notwithstanding anything to the contrary in any agreement between me and Citadel, including any employee incentive program, equity participation program or similar arrangement, Citadel and I agree that any claim I may have against Citadel (including any discrimination claim), or that Citadel may have against me must be filed no more than one (1) year after the date on which the claim first arises. Failure to do so will constitute a waiver of claims, and such claims will be barred. Citadel and I waive any statute of limitations to the contrary.

5. Costs. The prevailing party shall be awarded its costs and expenses, including legal fees, arbitrators' fees, experts' fees and other fees and expenses incurred in connection with the arbitration or litigation.

6. General. Except as otherwise provided herein, if a court or arbitration tribunal determines that any provision contained in this Agreement (including any definition referred to and/or incorporated herein) is unenforceable in any respect, then the effect of such provision will be limited and restricted so as to permit the provision to be enforceable or, if that is not possible, such provision will be removed from this Agreement and the remainder shall stand. In the event that the dispute or claim involves a written agreement between Citadel and me, a Citadel compensation model or employee incentive program or a partnership vehicle, neither the arbitrator(s) nor the court will have authority to add to, detract from or otherwise modify the agreement, model, program or vehicle provisions other than as expressly set forth in the applicable documents. Should this Agreement conflict with the arbitration provisions of any other agreement that I have with Citadel, or with the terms of any Citadel employee incentive program, the terms of this Agreement will govern. This Agreement supersedes all arbitration provisions contained in any past, present or future application, registration, rule or other document of any self-regulatory organization in which Citadel or I am a member, former member or applicant, or with which Citadel is or I am or either Citadel or I was otherwise associated.

7. Governing Law/Venue. The terms of this Agreement are incorporated by this reference and made applicable to my Non-Compete Agreement (if applicable), Supplemental Non-Compete Agreement, Non-Solicitation Agreement and Non-Disclosure Agreement (collectively, along with this Agreement, the "Employment Agreements"). Unless otherwise specified, this Agreement shall be governed by and interpreted in accordance with the laws of New South Wales (without regard to conflict of law principles). To the extent that proceedings in court are permitted by the Employment Agreements, Citadel and I both consent to, and submit to, on an exclusive basis, the personal jurisdiction and venue of the courts located in Sydney, New South Wales (other than an action to enforce an arbitration award, which may be filed in any court of competent jurisdiction). Citadel and I irrevocably waive any claim that the courts in Sydney, New South Wales are an inconvenient forum. I

agree to accept service of any court filings and process by delivery to my most current home address on record with Citadel via first class mail, by any nationally recognized overnight delivery provider or by any third party regularly engaged in the business of service of process. This Agreement represents the entire agreement between me and Citadel regarding the matters covered in this Agreement and supersedes any prior agreement between me and Citadel regarding such matters.

8. Definitions for Employment Agreements. The following definitions apply to the Employment Agreements and my offer letter:

"Cause" means any termination on or following: (i) my conviction (including conviction that results from any plea or plea agreement) of any criminal offence; (ii) the knowing material theft, or the knowing embezzlement or fraud by me or my involvement, either alone or in concert with others, in any scheme or conspiracy to knowingly divert assets from Citadel or any Citadel Client; (iii) any act by me which might reasonably be considered by Citadel to materially injure, tarnish, damage or otherwise negatively affect Citadel's reputation or goodwill; (iv) my material or persistent failure to perform my material duties or to comply with Citadel's policies and procedures, if such failure, if it can be cured, is not cured within thirty (30) days after Citadel sends me written notice specifying the nature of such failure; (v) any knowing or reckless act of material dishonesty by me in connection with my employment; (vi) the knowing or reckless breach or violation by me of my contractual obligations to Citadel or any law, fiduciary duty or material regulation respecting the business of Citadel; (vii) any of the representations made in my Affirmation of Compliance and Disclosure of Pre-Existing Rights and Obligations were inaccurate; or (viii) failure to satisfy any terms and conditions set forth in my offer of employment; or (ix) any action which is serious enough to be gross misconduct.

"Citadel Business Activities" means any of the investment strategies; trading strategies; research and development activities; trading, trade execution, market making and investment activities; asset management activities; advisory activities; or any other business activities engaged in by Citadel at any time during my employment or that Citadel proposed or planned to engage in at any time in the twelve (12) month period prior to the termination of my employment with Citadel.

"Citadel Client" means any person or entity that was an investor in any funds sponsored or managed by Citadel or that maintained an account managed or sponsored by Citadel, in each case, at any time during the twelve (12) month period preceding the end of my employment (i) that I knew or had reason to know was an investor in any fund sponsored or managed by Citadel or that maintained an account managed or sponsored by Citadel, and (ii) with whom I had material contact while I was an employee of Citadel. Citadel Client also means any person or entity that was an advisor, consultant or manager of any person or entity referred to in clauses (i) or (ii) of the preceding sentence or that I knew or had reason to know invested the capital of others in any fund or account managed or sponsored by Citadel and with whom I had material contact while I was an employee of Citadel. Citadel Client shall also include (x) any person or entity to whom Citadel provides financial or advisory services, (y) any person or entity who is an order flow provider to Citadel, and (z) any person or entity who is a customer (as such term is commonly understood) of Citadel, in each case, during the twelve (12) month period preceding the end of my employment (1) that I knew or had reason to know was a person or entity so described, and (2) with whom I had material contact while I was an employee of Citadel.

"Citadel Employee" means any person that (i) is employed, or engaged as an exclusive consultant, by Citadel; or (ii) was an employee of, or exclusive consultant to, Citadel, in each case, at any time within the ninety (90) day period immediately preceding the conduct in question and with whom I had material contact in the course of my employment.

"Citadel Group" means the Employer, and any body corporate which is related to the Employer within the meaning of the *Corporations Act 2001* (Cth) and any affiliate of one or more of the foregoing entities ("affiliate" means any other corporation, trust, association, unincorporated organization, limited liability company, joint venture, partnership or other entity that either directly or indirectly (including through one or more intermediaries) controls, is controlled by or is under common control with such company). For purposes of this definition, "control" (including, with correlative meanings, the terms "controlling", "controlled by" and "under common control with"), as applied to any person, means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of that person, whether through the ownership of voting securities or by contract or otherwise.

"Competitive Activity" means (i) directly or indirectly providing products or services to, or for the benefit of, a Competitive Enterprise, including without limitation, as an employee, advisor, consultant, agent, partner, principal, director, manager, vendor, or executive of a Competitive Enterprise whether or not for compensation in a capacity; (a) where there is a reasonable possibility that I may, intentionally or inadvertently, directly or indirectly, use or rely upon Confidential Information; or (b) that is materially similar to the capacity I was in, where I provide products or services that are materially similar to the products or services I provided, or with responsibilities that are materially similar to the responsibilities I had, in each case, during the twelve (12) month period preceding the end of my employment with Citadel; (ii) directly or indirectly, forming, or acquiring greater than a 5% equity, voting, revenue, income, profit, loss or other economic interest in, any Competitive Enterprise; or (iii) directly or indirectly planning or organizing any Competitive Enterprise. For the avoidance of doubt, engaging in recruiting activities on behalf of, or in connection with, a Competitive Enterprise constitutes a Competitive Activity.

"Competitive Enterprise" means any business or operation, irrespective of form (*e.g.*, a sole proprietorship, partnership, limited liability company, corporation, joint venture or other type of entity), that (i) engages in, or proposes or plans to engage in, any activity that is identical or materially similar to any Citadel Business Activities, or (ii) owns or controls a significant interest in any entity that engages in, or proposes or plans to engage in, any activity that is identical or materially similar to any Citadel Business Activities.

"Confidential Information" means trade secrets, know-how, other proprietary information or other information that (i) is not generally known to the public, (ii) is not trivial, and (iii) relates to Citadel, any Citadel Client or its or their activities. Examples of Confidential Information include information relating to Citadel's internal financial affairs (such as matters relating to the financial arrangements it has with Citadel Clients, the revenues and expenses associated with the operation of its business and similar matters); business strategies; portfolio holdings and investment performance track record; employment and recruiting processes and strategies; the compensation, skill-set and experience of personnel; information regarding sources of investment capital; proprietary portfolio management techniques and strategies, including automated trading strategies; proprietary quantitative analytics and models used to evaluate financial instruments and markets; investment opportunities; proprietary software and proprietary system architectures; identity of Citadel Clients or other information regarding such Citadel Clients; identity of or other information concerning the business relationship between Citadel and any person whose sources of information, expertise or experience Citadel relies upon in its business; Citadel's business and investment processes, strategies and methods; and any information that Citadel has received from a third party under a duty of confidentiality. Confidential Information is not limited to items labeled as such.

I have had the opportunity to review this Agreement and to consult with a qualified lawyer prior to signing it, and I voluntarily agree to its terms. I acknowledge that I am entering into this Agreement in exchange for good and valuable consideration, including employment or continued employment with Citadel, as the case may

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be, all of the compensation, benefits, incentive opportunities, and any other consideration provided to me by Citadel, as part of my offer letter, employment terms, or otherwise, the sufficiency and receipt of which is hereby acknowledged, Citadel and I agree to all of the provisions of this Agreement.

Acknowledged and Agreed to on behalf of the Employer

DocuSigned by:

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Sean Gong

Kristina Martinez

Kristina Martinez
Head of APAC People

Date: 3/22/2022